

The Goa Public Men's Corruption (Investigations and Inquiries) Conditions of Service of Members of the Commission Rules, 1993

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State of Goa - Act

The Goa Public Men's Corruption (Investigations and Inquiries) Conditions of Service of Members of the Commission Rules, 1993

GOA

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The Goa Public Men's Corruption (Investigations and Inquiries) Conditions of Service of Members of the Commission Rules, 1993

Rule

THE-GOA-PUBLIC-MEN-S-CORRUPTION-INVESTIGATIONS-AND-INQUIRIES-CONDITIONS-OF-SERVICE-OF-MEMBERS-OF-THE-COMMISSION-RULES-1993 of 1993

Published on 14 June 1993

Commenced on 14 June 1993

[This is the version of this document from 14 June 1993.]

[Note: The original publication document is not available and this content could not be verified.]

The Goa Public Men's Corruption (Investigations and Inquiries) Conditions of Service of Members of the Commission Rules, 1993

Published vide Notification No. 1/26/80-VIG-VOL-1, dated 14th June, 1993

1.

/26/80-VIG-VOL-I. - In exercise of the powers conferred by sub-section (1) read with clause (b) of sub-section (2) of

section 32 of the Goa Public Men's Corruption (Investigations and Inquiries) Act, 1988 (Act 7 of 1991

), the Government of Goa hereby makes the following rules regarding the conditions of service of Members of the Commission, namely:-

1. Short title and commencement.

(1)

These rules may be called the Goa Public Men's Corruption (Investigations and Inquiries) Conditions of Service of Members of the Commission Rules, 1993.

(2)

They shall come into force at once.

2. Definitions.

- In these rules, unless the context otherwise requires,-

(i)

"Act" means the Goa Public Men's Corruption (Investigations and Inquiries) Act, 1988 (Act 7 of 1991

);

(ii)

Words and expressions used but not defined in these rules, and defined in the Act, shall have the meanings respectively assigned to them in the Act.

3.

Perquisites.

- A member shall be entitled to the same perquisites as of a Judge of the High Court of Judicature at Bombay or Supreme Court as the case may be, from time to time.

4.

Daily allowance.

- A member shall be entitled to daily allowance at the same rate as of a Judge of the High Court or Supreme Court as the case may be, from time to time.

5.

Surrender of leave.

- A member is entitled to surrender leave facilities as in the case of a Group "A" Officer of the State Government.

6.

Medical reimbursement.

- A member shall be entitled to the same medical attendance facilities as of a Minister and the Medical Attendance Rules, if any, which are applicable to the Minister, Speaker, Deputy Speaker, Leader of Opposition, Chief Whip and the Members of the Legislative Assembly, shall also be applicable for reimbursement of medical expenses of a member and the members of his family.

7.

Leave travel concession.

- A member and members of his family shall be entitled to avail the same Leave Travel Concession as of a Judge of the High Court or Supreme Court as the case may be, and the members of his family from time to time.

8.

Pension.

- A member shall be entitled to an annual pension at the rate of Rs. 3,600/- for one completed year of service in the Commission. In the case of a member who has joined the Commission after retirement as a Judge or an Officer who held a pensionable job, pension at the above rate will have to be added to the pension he was already getting at the time of joining the Commission, so as to arrive at the pensionary benefits for which he will be entitled when he ceases to be a member of the Commission.

9.

Right of a member for salary and allowances and other benefits.

- A member appointed on his assuming charge, becomes entitled to the salary and allowances and other benefits conferred by the Act and these rules including pensionary benefits for the whole of the term to which he is entitled to

continue as a member as per section 6 of the Act.

In case a member is not able to complete his full term of office as per the terms of his appointment otherwise than by resignation or by removal under section 7 of the Act or by his death, he shall be entitled to get the salary, allowances and other benefits for his full term of office had he continued as member but for the termination of appointment for any reason whatsoever.

10.

Residuary matters.

- In matters not made mention of in these rules and for which provision is there in the Rules, notifications, orders and proceedings in force which govern the conditions of service of Judges of the High Court of Judicature at Bombay or the Supreme Court, as the case may be, the same provisions shall be applicable to a member as far as possible under the Act. The changes made from time to time in the service conditions of the Judges of the High Court of Judicature at Bombay or Supreme Court, as the case may be, shall be made applicable to a member of the Commission to the extent permitted by the provisions of the Act.

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